

24STCV19895 24STCV19895

County: los-angeles
Division: Civil Law and Motion
Department: 506
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Case Number: 24STCV19895 Hearing Date: July 2, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

DIAMOND ART CLUB, LLC,

Plaintiff,

vs.

HANNAH LYNN,

Defendant.

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CASE NO.: 24STCV19895

[TENTATIVE] ORDER GRANTING MOTION FOR LEAVE
TO AMEND

Dept. 506

8:30 a.m.

July 2, 2026

On

August 7, 2024, Diamond Art Clubs LLC (“DAC”) filed this action against Hannah Lynn,
alleging breach of contract and unjust enrichment.

On

September 30, 2024, Lynn filed a cross-complaint; on March 5, 2025, Lynn filed a
first amended cross-complaint; and on February 13, 2026, Lynn filed a second amended
cross-complaint (“SACC”).

On

June 4, 2026, Lynn filed a motion for leave to file a third amended cross-complaint
(“TACC”).

The

Court may, in its discretion and after notice to the adverse party, allow an amendment
to any pleading. (Code Civ. Proc., § 473,
subd. (a)(1).) A motion to amend a pleading
must include a copy of the proposed amendment or amended pleading which must be
serially numbered to differentiate it from previous pleadings or amendments and

must state what allegations in the previous pleading are proposed to be deleted or added, if any, and where, by page, paragraph, and line number, the allegations are located. (California Rules of Court, rule 3.1324(a).) The motion shall also be accompanied by a declaration attesting to the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (California Rules of Court, rule 3.1324(b).)

Lynn provides a red-lined copy of the proposed third amended cross-complaint ("TACC"), which adds a cause of action for declaratory relief and adds details about what DAC said. (Motion at p. 2 & Ex. 1.) These amendments do not change the nature of this action, as the contract's terms and obligations have always been at issues. (See Opposition at pp. 6-7.)

DAC argues that it would be prejudiced by being forced to prepare a new responsive pleading to a restructured complaint that inserts an entirely new Declaratory Relief cause of action as the first cross-claim and renumbers all existing claims. (Opposition at pp. 5-6.) This is easily fixed. The Court orders Lynn to maintain the existing numbering for her claims and to add her new cause of action as the fifth, not first, cause of action.

DAC also argues that the new declaratory relief cause of action is duplicative. (Opposition at p. 9.) The Court does not ordinarily consider the validity of the proposed amended pleading when determining whether to grant leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Because there is no showing of prejudice, the motion for leave to file a TACC is GRANTED.

Lynn is ordered to file and serve the TACC (with Declaratory Relief as the fifth, not first, cause of action) within 21 days.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 2nd day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court